

INDEPENDENT EB-5 ANALYSIS

EB-5 Offering Analysis

Excerpted Sample Report

A limited illustration of how EB5 Diligence organizes offering terms, tests document consistency, identifies evidentiary gaps, and develops questions for the issuer.

ILLUSTRATIVE PROJECT

Riverside Advanced Manufacturing Expansion

This is not an actual offering. All names, terms, figures, citations, findings, and questions are illustrative.

What this sample intentionally withholds

The complete report structure, full 108-point analytical framework, internal review logic, scoring sequence, and full-form work product are proprietary and are not reproduced here. A completed client report is substantially more detailed.

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ABOUT THIS SAMPLE

What an Offering Analysis does

An Offering Analysis converts a large and fragmented EB-5 offering package into a consistent, cited explanation of the investment. It is designed to help an investor understand the documents, compare offerings, and know what must still be investigated.

The three outputs that matter most

1. Organized terms: material provisions are brought together in one place.
2. Document testing: agreements are compared for conflicts, omissions, and unsupported claims.
3. A due-diligence roadmap: the report identifies the evidence an investor should request and the questions the issuer should answer.

Scope and limitations

The analysis is based exclusively on the offering materials made available for review. It explains and evaluates what those documents state, but it does not independently verify sponsor representations, perform an audit, appraisal, market study, feasibility study, legal opinion, tax analysis, immigration analysis, or independent financial underwriting.

The report is informational. It is not investment advice, a recommendation, or a prediction of immigration approval, project performance, repayment, or return of capital. EB-5 investments involve risk, including the possible loss of the entire investment. Investors should consult qualified immigration counsel, securities counsel, tax advisors, and financial professionals.

How citations work

Every material statement in a completed report is tied to the document that supports it. Illustrative citations in this sample show the intended reading experience, such as: PPM p. 27; Loan Agreement Sec. 3.2; Business Plan p. 41.

A report does not turn a claim into a fact

If the business plan states that senior financing is 'committed,' the analysis reports that representation and then asks whether the executed senior-loan documents, conditions to funding, and current lender status were provided. The distinction between a claim and evidence is central to the work.

SELECTED EXCERPT 1

Offering snapshot

This condensed page illustrates how important terms are presented. A completed report includes substantially more fields, narrative, reconciliation, and citations.

Item	Illustrative term	Document source
EB-5 investment	\$800,000 per investor	PPM p. 8
Administrative fee	\$70,000	Subscription Agreement p. 4
Offering size	Up to 30 investors / \$24.0 million	PPM p. 11
Investment structure	NCE loan to project borrower	Loan Agreement Sec. 2.1
Loan term	5 years, plus two 1-year extensions	Loan Agreement Sec. 2.4
Investor return	0.50% annual preferred return	LP Agreement Sec. 5.3
TEA category	Rural - sponsor representation	TEA analysis p. 3
I-956F status	Approved - approval notice reviewed	I-956F Notice, dated [date]
Job cushion	Projected 34% above minimum	Economic Report p. 22

Selected observation

The PPM and Loan Agreement describe the same initial maturity and extension structure. The business plan, however, refers to an anticipated repayment in Year 4 without explaining whether that timing assumes refinancing, sale proceeds, operating cash flow, or another capital event. The operative loan maturity is therefore clear, but the projected source and timing of repayment require further support.

Sources: PPM pp. 8, 11, 27; Loan Agreement Secs. 2.1 and 2.4; Business Plan pp. 39-42; LP Agreement Sec. 5.3.

Why this matters

Investors often focus on the stated term. The more important question is whether the documents demonstrate a credible source of funds to repay the NCE at maturity - and what rights the NCE has if repayment does not occur.

SELECTED EXCERPT 2

Capital stack and repayment

The analysis separates the amount and priority of each source of capital, then examines what must happen for the EB-5 investment to be returned.

Source	Amount	% of total	Status stated
Developer equity	\$12.0M	20%	Contributed
Senior construction loan	\$24.0M	40%	Commitment described
EB-5 loan	\$24.0M	40%	Being raised
Total	\$60.0M	100%	

Source: Business Plan p. 31. Figures are illustrative and have not been independently verified.

Selected findings

Topic	Document-based finding	Assessment
Developer equity	The business plan states \$12.0M has been contributed, but no closing statement, bank evidence, or current project ledger was provided.	Support needed
Senior debt	A lender term sheet is referenced. An executed credit agreement and current conditions-to-funding schedule were not included.	Material gap
Collateral	The EB-5 loan is described as secured by a second-position mortgage and equity pledge, subject to senior-lender rights.	Terms identified
Repayment	The base case assumes refinancing after stabilization. No executed refinancing commitment or third-party valuation was provided.	Dependency

Documents needed to evaluate the repayment claim

Executed senior credit agreement; current sources-and-uses ledger; evidence of developer equity funded; current construction draw report; appraisal or valuation supporting the refinance assumption; intercreditor or subordination agreement; and any executed refinancing commitment.

SELECTED EXCERPT 3

Job creation and immigration posture

The report distinguishes USCIS status and document evidence from projections that remain dependent on future expenditures, construction, revenue, or operations.

Metric	Illustrative result	Analytical note
Investors contemplated	30	Requires 300 qualifying jobs
Jobs projected	402	Economic-model projection
Projected cushion	102 jobs / 34%	Before changes to scope or eligible inputs
Jobs tied to construction	318	Dependent on eligible expenditures
Jobs tied to operations	84	Dependent on operating assumptions

Source: Illustrative Economic Impact Report pp. 18-24; Business Plan pp. 33-38.

Selected consistency check

The economic report models \$51.4 million of qualifying construction expenditures, while the business plan's detailed development budget identifies \$48.7 million in potentially qualifying categories. The documents do not reconcile the \$2.7 million difference. Because projected job creation depends on the eligible input amount, the discrepancy should be resolved before relying on the stated cushion.

Sources: Economic Impact Report p. 19; Business Plan pp. 34-36.

What the I-956F approval does - and does not - establish

The approval notice establishes the project's USCIS posture as documented. It does not independently establish that every future investor will be approved, that projected expenditures or jobs will occur, or that investor capital will be repaid. Those are separate questions requiring separate evidence.

Evidence to request

Current expenditure ledger; independent fund-administrator report; invoices and draw records supporting eligible costs; current construction status report; reconciliation between the business plan budget and economic-model inputs; and confirmation of the number of investors admitted and jobs allocated to date.

SELECTED EXCERPT 4

Critical gaps and issuer questions

A completed report turns document gaps into a practical follow-up list. The questions below are illustrative examples arising from the fictional findings shown in this sample.

Gap	Why it matters	Priority
Executed senior credit agreement not provided	Prevents review of lien priority, covenants, defaults, foreclosure rights, and funding conditions.	Critical
No evidence supporting funded developer equity	The amount and timing of sponsor capital affect completion and alignment of interests.	High
No current construction report	The report cannot compare actual progress and spending with the stated schedule and budget.	High
Budget and economic inputs do not reconcile	The stated job cushion may change if eligible expenditures are lower than modeled.	Critical

Questions ready to send to the issuer

1. Please provide the executed senior credit agreement, all amendments, and the current schedule of conditions remaining before additional advances may be made.
2. What documentary evidence confirms that the stated \$12.0 million of developer equity has been contributed and remains invested in the project?
3. Please reconcile the \$51.4 million construction input used in the economic report with the \$48.7 million of potentially qualifying costs identified in the business plan.
4. What is the current percentage of construction completion, amount spent, amount remaining, and expected completion date? Please provide the latest third-party progress report.
5. What specific source is expected to repay the EB-5 loan? If refinancing is assumed, please provide the valuation, lender correspondence, and underwriting assumptions supporting the projected proceeds.
6. If the borrower does not repay at maturity, who controls enforcement, what consents are required from the senior lender, and what funds are available to pay enforcement expenses?

The value is not a longer checklist

The value lies in connecting each question to a specific representation, agreement provision, inconsistency, or missing item in the actual offering package.

COMPLETE CLIENT REPORT

What the full analysis includes

This excerpt shows only selected pages. A completed report applies the full proprietary framework to the investor's actual offering documents.

Area	Coverage in completed report
Offering highlights	Key terms and quick-reference findings with document citations
Executive summary	Neutral explanation of structure, capital deployment, project, and immigration posture
EB-5 fund / NCE	Governance, deployment, economic terms, protections, fees, refunds, and enforcement
Project / JCE	Scope, budget, capital stack, timeline, jobs, projections, and repayment dependencies
Management	Document-stated principals, roles, affiliations, conflicts, and track record
Regional center and USCIS	Sponsorship, geography, TEA support, filing status, and available notices
Documents reviewed	Version-controlled list of materials reviewed and materials referenced but missing
Findings	Project-specific strengths, risks, and considerations tied to source documents
Critical gaps	Missing support, incomplete documents, inconsistencies, and questions for the issuer

Designed for comparison

Most investors evaluate several offerings. Applying the same framework to each project makes differences in structure, evidence, protections, job creation, and repayment dependencies easier to see.

Understand what you are signing up for.

\$500 per report | Delivered within 48 hours after receipt of the necessary offering documents

Request an Offering Analysis at www.eb5diligence.com

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